

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 22, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of contained [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Ms. Broyles and Mr. Brown, agenda item #22(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 8, 2013. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th p.m., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive). Jim Flesher, Planning Services Dept., reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry, Mr. Flesher verified the area involved as depicted on the map he displayed during his comments and advised a zone change for either commercial or industrial use will be forthcoming. He stated the annexation resolution and subsequent ordinance will run concurrently with the site plan, and advised additional future annexation of property in the area is planned. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1, Medium Density Residential-Established to NR-3, Neighborhood Residential-High Density for the West 44-feet of Lot 4, Block 259, Original City, Cheyenne, Wyoming (located at the southeast corner of 21st Street and Maxwell Avenue). Reporting for Public Services Committee, Mr. Allen moved to approve on second reading, seconded by Mr. Cook.

Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P, Public, to CBD, Central Business District for the south ½ of Lots 1 and 2, and 16-foot vacated alley, Block 229, Original City, Cheyenne, Wyoming (located west of and adjacent to Pioneer Avenue, between 21st and 22nd Streets). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Vacating portions of Duff Avenue and E. 13th Street adjacent to Blocks 443, 444, 453 and 454, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Alexander Avenue). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body.

[CA] RESOLUTION - Approving the City of Cheyenne’s 2013- 2014 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#5484)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Okie Addition, First Filing, a portion of Section 28, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of E. Pershing Boulevard and Windmill Road, near East High School). Motion (per Consent Agenda) carried. (#5485)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Fincher Block, 2nd Filing, a replat of Lots 1 through 12, Block One, Fincher Block, Cheyenne, Wyoming (located between Morrie and Bradley Avenues, and between E. 22nd and 23rd Streets). Motion (per Consent Agenda) carried. (#5486)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5487)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement to update the City’s Historic Preservation ordinance. Motion (per Consent Agenda) carried. (#5488 Res/#5986 Con)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to develop a Downtown Cheyenne Facade Improvement Program. Motion (per Consent Agenda) carried. (#5489 Res/#5987 Con)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund a Historic Cheyenne Film Contest Project. Motion (per Consent Agenda) carried. (#5490 Res/#5988 Con)

[CA] RESOLUTION - Approving the first quarterly report ending March 31, 2013, of the cumulative funds transferred to the State of Wyoming participating municipalities from the State Small Business Credit Initiative. Motion (per Consent Agenda) carried. (#5491)

[CA] RESOLUTION - Approving the Title VI Program for the Cheyenne Transit Program, Cheyenne, Wyoming, and the Cheyenne Metropolitan Planning Organization -- referred to Finance Committee (sponsor -- Ms. Williams).

Real Estate Purchase Agreement between W. E. Dinneen, Inc., and the City of Cheyenne, for the City's purchase of various parcels of real property generally located within Block 353, Original City, between Pioneer and Thomes Avenues and between 17th and 18th Streets, Cheyenne, Wyoming, commonly known as 405 West 18th Street, 1704 Pioneer Avenue, 410 West 17th Street, and 416 West 17th Street, which are owned by W.E. Dinneen, Inc. (1% Specific Purpose Sales & Use Tax). Chief Brian Kozak, Cheyenne Police Department, provided a slide presentation entitled "Cheyenne Public Safety Center Land Acquisition Report", and discussed the background and general overview of the new public safety building project which is initially planned to house the Police Department, Cheyenne Fire and Rescue Department Administration, Laramie County Combined Communications Center, Emergency Operations Center, and Cheyenne Victim Services. He advised the information he was presenting was basically the same as what was provided at the recent Committee of the Whole meeting. Chief Kozak's presentation topics included the following: Space needs assessment conducted in 2009; professional consultants utilized to conduct various analysis involving sites, engineering, concrete and structural reviews and studies, energy efficiency, architectural concepts and construction cost modeling; background of property sites that were researched and factors evaluated in reviewing potential sites; operational and security benefits of the proposed Dinneen property; conceptual building renovation and floor plan and site footprint; estimated project costs; future building site expansion opportunity; elements of the property appraisal and negotiated purchase price of \$1.886 million dollars; maintaining a downtown public safety presence; 6th penny sales tax approved by voters to fund the project and public education efforts, including project information posted on the Department's website, and numerous planning and evaluation aspects involving the project. During Chief Kozak's comments, additional information on other sites that were reviewed was provided by Lt. Mark Munari, Police Department. Chief Kozak noted the following consultants in attendance at the meeting: Ted Halsey, DLR Group; Bryan Hemeyer, FCI Constructors; Stephan Pappas, Pappas and Pappas Architects; Ralph Rempel, Martin/Martin Engineering; Bob Clary, structural engineer; and Clay Muirhead, Terracon Consultants. The consultants provided information on the proposed site and existing building on the site, and other sites reviewed, and responded to questions posed by the governing body. Also offering comments in support of acquisition of the Dinneen property were: Melissa Leger, Downtown Development Authority (DDA) board member, noting the Dinneen site was presented to the voters as the proposed location; John Sundahl, President, DDA, commenting in favor of the building project being located in the downtown area and adding support to downtown revitalization, and Mr. Pappas, speaking as a voter/taxpayer, who expressed his belief that acquiring the property would be a good fiduciary decision and that appraisals are only an indication of what other properties are selling for at the time. As a follow-up to a slide shown by Chief Kozak during his presentation, Rick Fortney, Laramie County Director of Information Technology, distributed copies of an updated diagram of computer inter-connectivity between City and County offices, and discussed fiber optic cable connections and the

“ring” of infrastructure between the governmental agencies in the downtown area. Subsequent to a point of order raised by Mr. Allen that a speaker state their name for the record and with Mayor Kaysen concurring, Glen Crumpton, Combined Communications Center, identified himself and advised he had also been involved with the project since the beginning stages. During comments, questions were posed by members of the governing body to consultants and speakers regarding review of other potential downtown building sites; elements considered during site evaluations; Phase I environmental study, and groundwater concerns in the downtown area. Mr. Muirhead provided information on components involved in a Phase I environmental study and what elements may be recognizable as a “risk” that could involve a decision to conduct a Phase II study. Upon inquiry, Dan White, City Attorney, verified that the purchase agreement contemplates the City conducting and reviewing results of the Phase I study prior to closing on the purchase of the property, and, based upon the results, the City could decide to not move forward with the purchase or to proceed with a Phase II study. In response to comments involving the environmental study, Chief Kozak noted that one of the benefits of the site is that there will be no need to disturb the ground. Reporting for Committee of the Whole, Dr. Rinne stated there was no recommendation from the Committee. Dr. Rinne moved to approve, seconded by Mr. Allen. Discussion included the following topics: Comments in support as well as non-support of purchasing the property; information contained in the Land Acquisition Report; benefits of a downtown enforcement presence; due diligence on evaluation of potential building sites; property appraisal and additional information being received (since the last (failed) action on proposed property acquisition was taken by the governing body at its March 11, 2013 meeting) resulting in a negotiated purchase price offered by the property owner; pros and cons of renovation of the existing building vs. constructing a new building; site amenities, including covered and secured parking; concern with negotiating future property acquisitions involving property appraisal vs. purchasing amount and maintaining taxpayers’ credibility; new construction offering an opportunity for a “state of the art” building and efficiencies, and downtown area involving the Capitol Basin and West Edge drainage projects and conceptual revitalization. Motion to approve carried. Voting “yes” -- Mr. Allen, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” -- Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams. (#5989)

Following a brief recess, Mayor Kaysen reconvened the meeting at 8:14 p.m.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff’s Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#5990)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried. (#5991)

[CA] Agreement between the City of Cheyenne and Boys and Girls Club of Cheyenne, Inc., for lease of City-owned real property located at 1700 Snyder Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5992)

[CA] Contract between the City of Cheyenne and Noel Griffith Jr. & Associates Architects for design of Household Hazardous Waste Facility (SLIB Grant funding). Motion (per Consent Agenda) carried. (#5993)

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and AVI Professional Corporation, Cheyenne, Wyoming, for the Logan Avenue Reconstruction Design Project (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5968 between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2013, 2014 and 2015 Softball Seasons (softball registration revenue). Motion (per Consent Agenda) carried. (#5968)

Amendment No. 1 to Contract No. 5737 between the City of Cheyenne, Engineering Department, and Zayo Group, LLC f/k/a 360networks (USA) inc., to add additional fiber optics in the public right-of-way (revenue to City). Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Upon inquiry, Nathan Beauheim, Acting City Engineer, advised the substitute slightly changes language in the agreement at the request of Zayo Group's attorney, and amends the map to add a "leg" onto the system that had previously been discussed but was overlooked in placement on the initial map submitted. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5737)

[CA] Amendment No. 1 to Contract No. 5853 between the City of Cheyenne and Delta Dental of Wyoming, to decrease the premiums by 2.75%, and extend the term one additional year for dental coverage for full time city employees -- referred to Finance Committee.

Consideration of Bid #M-10-13 for a contract for the Snyder Avenue Reconstruction project between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming (2003-2006, 2007-2010, 2011- 2014 1% Sales Tax). Sam Berta, Engineering Dept., advised Simon Contractors submitted the lowest bid which includes Alternate A. Mr. Brown moved to accept the bid in an amount not to exceed \$5,669,859.20, seconded by Mr. Luna. Comments followed regarding the governing body being informed of any long term impact of construction projects to businesses or homeowners in the area. Upon inquiry, Mr. Berta provided information pertaining to an on-street parking issue involving a business that was impacted due to a prior W. Pershing/Snyder project, and clarified that no private parking area was affected. Nathan Beauheim, Acting City Engineer, advised a convenience store business located at the corner of Randall and Snyder had implemented an off-street parking area on the west side of the building, noting this is in violation of city ordinance, and pursuant to the reconstruction project the parking area will be removed. He advised the situation has been discussed with the owner. Upon inquiry, Mr. Berta explained that Alternate A involves using a square box instead of a round outfall pipe, which will provide savings in the amount of \$200,000, and reviewed the physical location of the project area. Motion carried. Voting "yes" -- all members of the governing body. (#5994)

Appointment of Robert G. Geringer as City Engineer. Dr. Rinne moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Michael J. Sorenson to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Brown moved to approve, seconded by Mr. Allen. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2013 Wyoming Association of Municipalities Annual Convention -- referred to Finance Committee.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:20 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 3, 2013